

with the Court's Order (MC-053) and the Change of Address form (MC-040).

6. 9:00 AM CASE NUMBER: C23-02758

CASE NAME: JOSHUA RICCABONA VS. DOLANS OF PINOLE LUMBER AND BUILDING MATERIALS CO.
HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT
FILED BY: RICCABONA, JOSHUA

TENTATIVE RULING:

Summary

The Court **grants** preliminary approval to the Class Action and PAGA Settlement ("Settlement") between Plaintiff Joshua Riccabona and those similarly situated ("Plaintiff") and Defendants Dolans of Pinole Lumber and Building Materials Co. and Dolans of Concord ("Defendants"). No appearance is required at the hearing on July 8, 2026.

Background

A summary of the proposed settlement terms follows. The Settlement creates a Gross Settlement Amount of \$662,000.00 to resolve claims alleging Labor Code violations including failure to pay minimum and overtime wages, meal and rest period violations, inaccurate wage statements, and related claims for the Class Period of December 29, 2018, through December 23, 2024.

The Settlement Class consists of all persons who worked for Defendants in California as hourly-paid or non-exempt employees during the Class Period. The Court is requested to provisionally certify this Class for settlement purposes only; to appoint Plaintiff Joshua Riccabona as Class Representative, and to appoint John G. Yslas, Jeffrey C. Bils, Emily K. Borman, and Courtney M. Miller of Wilshire Law Firm, PLC as Class Counsel. The Court is also requested to appoint ILYM Group Inc. as Settlement Administrator.

From the Gross Settlement Amount of \$662,000.00, the following payments shall be deducted upon final approval: (1) a Class Representative Service Payment of up to \$10,000.00 to Plaintiff; (2) attorneys' fees to Class Counsel not to exceed one-third of the Gross Settlement Amount (\$220,666.67); (3) litigation costs to Class Counsel not to exceed \$47,000.00; (4) Settlement Administration Costs not to exceed \$7,750.00; (5) PAGA civil penalties of \$30,000.00; and (6) individual class payments to participating Class Members. The Net Settlement Amount available for distribution to Class Members after these deductions is estimated to be \$346,583.33.

The \$30,000.00 PAGA penalty allocation shall be distributed as follows: 75% (\$22,500.00) to the California Labor and Workforce Development Agency ("LWDA") and 25% (\$7,500.00) to Aggrieved Employees as Individual PAGA Payments. Individual class payments to Class Members shall be calculated based on the number of workweeks worked during the Class Period, while Individual PAGA Payments shall be calculated based on the number of PAGA Pay Periods worked. For tax purposes, individual class payments shall be allocated 20% to wages and 80% to interest and penalties, while Individual PAGA Payments shall be allocated 100% to penalties. Defendants shall separately pay all employer payroll taxes on the wage portions of individual class payments.

No portion of the Gross Settlement Amount shall revert to Defendants. Any uncashed checks shall be

transmitted to the California Controller's Unclaimed Property Fund. Any deductions not approved by the Court shall be retained by the Settlement Administrator in the Net Settlement Amount. The Settlement Administrator shall distribute Class Notice to Class Members by first-class mail, with procedures for re-mailing to forwarding addresses or addresses obtained through Class Member Address Searches.

Class Members may opt out of the Settlement or object to its terms. The deadline to opt out or object shall be extended by fourteen (14) days for any Class Member whose notice was remailed. The Court approves the form and content of the Class Notice as satisfying due process requirements. The Settlement Administrator shall implement the notice plan according to the Implementation Schedule.

Upon final approval, the Settlement will result in the release of all claims alleged in the Class Action and PAGA Action, including claims for failure to pay wages, failure to provide meal and rest periods, wage statement violations, and all related PAGA penalties based on the facts alleged in the operative pleadings and PAGA Notices.

A final approval hearing shall be scheduled to determine whether the Settlement, attorneys' fees and costs, Class Representative Service Payment, and PAGA penalty allocation should be finally approved as fair, reasonable, and adequate.

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, specifically \$220,666.6, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed

through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$10,000.00 for the Plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Court finds that the Settlement falls within the range of reasonableness, was reached through arm's length negotiations with the assistance of a neutral mediator, and appears fair, adequate, and reasonable for preliminary approval purposes.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval.
2. The motion is **granted**.
3. Plaintiff's Counsel is directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and this ruling, attaching a copy of this ruling.
4. Plaintiff's counsel is ordered to obtain a hearing date for the Motion for Final Approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
5. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
6. The Court may issue a release through an unreported minute order without hearing on the compliance statement.
7. No appearance is required at the hearing on July 7, 2026.

7. 9:00 AM CASE NUMBER: C23-03034
CASE NAME: VICTORIA PLUMLEE VS. JERRY MCLAUGHLIN, MD
HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT
FILED BY:

TENTATIVE RULING:

Summary: Defendant Stanford Health Care's ("Defendant") Demurrer to the Third Amended